SUMMERLIN WEST COMMUNITY ASSOCIATION

POLICIES

3/25/14

TABLE OF CONTENTS

Billing and Collections (8/13/2013)	1
Billing and Collections – Builder (8/13/2013)	3
Billing and Collections – Non-Residential (8/13/2013)	5
Compliance Resolution Procedures	7
Penalty Policy and Procedure (11/9/2001)	8
Operating Fund Investments (11/10/2009)	11
Reserve Fund Investments (11/10/2009)	12
Electronic Transfer of Funds (2/7/2012)	13
Subdivision Common-Area Enhancements (2/10/2009)	14
Garage Conversions to Living Space (2/5/2014)	15
Garage Sale Signage (11/9/2001)	16
Holiday Decorations (11/9/2001)	17
Removal of Plant Material from Common Areas (11/9/2001)	18
Commercial Vehicles (11/9/2001)	19

SUMMERLIN WEST COMMUNITY ASSOCIATION
BILLING AND COLLECTION PROCEDURES

Pursuant to Article VIII, Sections 8.7 , 8.8 and 8.9 of the Declaration of Covenants, Conditions, Restrictions and Reservations of Easements for the Summerlin West Community Association (CC & Rs) the Board of Directors has authority to adopt procedures for the billing and collecting of assessments and charges (hereinafter referred to as assessment).

In accordance with NRS 116.3116, Summerlin West Community Association (the Association) has a lien on a unit for any construction penalty that is imposed against a unit's owner pursuant to NRS 116.310305, any assessment levied against that unit or any fines imposed against the unit's owner from the time the construction penalty, assessment or fine becomes due. If the assessment is paid in installments, the full amount of the assessment is a line from the time the first installment thereof becomes due.

The Board hereby formally adopts the following billing and collection procedures to be implemented forthwith.

1. Assessments shall be due in twelve (12) equal installments each year on the first day of each billing month.

2. No later than fifteen (15) days prior to the beginning of the fiscal year, monthly coupon booklets will be mailed by regular mail to the Members at their current addresses. Members who participate in the Automatic Payment Program will not receive a coupon book.

3. Assessments are due on the 1st day of the billing month and there is a late charge of $3.00 for each month in which the payment has not been received within thirty (30) days after the due date.

4. As part of the collection procedure, pursuant to Article XI, Section 11.1[c] (ii) of the CC & Rs, the Board hereby adopts a resolution that suspends the voting rights and the use of any recreational facility within Common Area, whether owned by the Association or the Summerlin Council by any Member who is delinquent on their assessment.

5. If a Member is delinquent six (6) months or more, a formal Intent to Lien notice, pursuant to Section 8.9 will be mailed by regular and certified mail. Prior to the mailing of the Intent to Lien or the Notice of Delinquent Assessment, the Association will mail to the delinquent unit's owner or his/her successor in interest:
   (a) A schedule of the fees that may be charged if the unit's owner fails to pay the past due obligation;
   (b) A proposed repayment plan; and
   (c) A notice of the right to contest the past due obligation at a hearing before the executive board and the procedures for requesting such a hearing.

   The Intent to Lien notice will itemize all sums due and inform the Member that if all delinquent sums are not fully paid within thirty-five (35) days from the date of the notice, one or more of the following steps will be taken:

   A. Acceleration of the balance of fiscal year assessments.

   B. A Notice of Delinquent Assessment will be recorded.

C. Legal action may be commenced to foreclose the lien.

D. Legal action may be commenced to collect the assessment, late charges, collection costs, court costs and attorney's fees, and all other sums due.

E. The debt may be reported to a credit reporting agency.

6. If the payment is not received, as stated in #5, on the thirty-fifth (35th) day, the preparation of the Notice of Delinquent Assessment will begin. In addition, the current ownership of the property will be verified and a copy of the deed will be secured.

7. Upon assignment of a Member's file to a professional lien and foreclosure service or an attorney, (hereafter referred to as Agent) the collection procedure is as follows:

A. The agent will prepare and record a Notice of Delinquent Assessment demanding payment within thirty (30) days. The notice will include the agent's fees for such.

B. The Notice of Delinquent Assessment will be sent by regular and certified mail. It will demand that payment be made to Summerlin West Community Association and delivered to the agent's office.

C. If payment is not received within thirty (30) days after recording a Notice of Delinquent Assessment or if the Member does not make satisfactory arrangements to pay the sum due; the agent may on or as soon after the thirty-first (31st) day as possible, and without further notice, report the debt to a credit agency.

D. Agent will then inform the management company as to those Member(s) still delinquent and the management company will consult with the Board of Directors for instructions which may include preparation of a Notice of Default and Election to Sell or a Summons and Complaint.

E. Depending on home equity values the Association may file suit to foreclose the lien or sue on a contract theory for all sums due.

F. In the event a judgment is rendered and the Member still refuses to pay, the agent may, upon request, be granted the authority from the Board to immediately commence execution upon the judgment, which includes garnishment of bank accounts and wages, seizure and sale by the sheriff or constable of non-exempt real and personal property, and debtor's examination.

Adopted this 13th day of August, 2013

Peggy Chandler, President

Robert Carroll, Secretary

SUMMERLIN WEST COMMUNITY ASSOCIATION
BILLING AND COLLECTION PROCEDURES
BUILDER PARCELS

Pursuant to Article VIII, Sections 8.7 and 8.9 of the Declaration of Covenants, Conditions and Restrictions for the Summerlin West Community Association (CC & Rs) the Board of Directors have authority to adopt procedures for the billing and collecting of assessments and charges (hereinafter referred to as " Assessments").

In accordance with NRS 116.3116, Summerlin West Community Association (the Association) has a lien on a unit for any construction penalty that is imposed against a unit's owner pursuant to NRS 116.310305, any assessment levied against that unit or any fines imposed against the unit's owner from the time the construction penalty, assessment or fine becomes due. If the assessment is paid in installments, the full amount of the assessment is a lien from the time the first installment thereof becomes due.

To date the Association has been billing Builder parcels on a monthly basis with assessments due by the end of each month. The Board hereby formally adopts the following billing and collection procedures to be implemented forthwith.

1. Assessments shall be due in twelve installments each year on the first day of each month.

2. No later than ten (10) days prior to the due date, on or before the twentieth (20th) day of each month respectively, initial billing statements will be mailed by regular mail to the Builders at their current addresses.

3. Payment is due on the 1st day of the billing month. A late charge of three ($3.00) dollars per platted lot shall be assessed if payment is not received within thirty (30) days after the due date

4. If a Builder is delinquent ninety (90) days of more, a formal Intent to Lien notice, pursuant to Section 8.9, will be mailed by regular and certified mail. Prior to the mailing of the Intent to Lien or the Notice of Delinquent Assessment, the Association will mail to the delinquent unit's owner or his/her successor in interest:
   (a) A schedule of the fees that may be charged if the unit's owner fails to pay the past due obligation;
   (b) A proposed repayment plan; and
   (c) A notice of the right to contest the past due obligation at a hearing before the executive board and the procedures for requesting such a hearing.

   The Intent to Lien notice will itemize all sums due for all platted lots owned by the Builder, and inform the Builder that if all delinquent sums are not fully paid within thirty-five (35) days from the date of the letter, one or more of the following steps will be taken:

   A. Acceleration of the balance of fiscal year assessments.

   B. A Notice of Delinquent Assessment will be recorded on all platted lots owned by the Builder.

   C. Legal action may be commenced to foreclose the lien.

D. Legal action may be commenced to collect the assessment, late charges, collection costs, court costs and attorney's fees, and all other sums due.

E. The debt may be reported to a credit reporting agency.

5. If the payment is not received on the thirty-fifth (35th) day, the preparation of the Notice of Delinquent Assessment will begin. The Board will be notified before any lien is recorded. In addition, the current ownership of the property will be verified and a copy of the deed will be secured.

6. Upon assignment of a Builder's file to a professional lien and foreclosure service or an attorney, (hereafter referred to as "Agent") the collection procedure is as follows:

A. The agent will prepare and record a Notice of Delinquent Assessment demanding payment within thirty (30) days. The notice will include the agent's fees for such.

B. The Notice of Delinquent Assessment will be sent by regular and certified mail. It will demand that payment be made to Summerlin West Community Association and delivered to the agent's office.

C. If payment is not received within thirty (30) days or if the Builder does not make satisfactory arrangements to pay the sum due, the agent may on or as soon after the thirty-first (31st) day as possible, and without further notice, report the debt to a credit agency.

D. Agent will then inform the management company as to those Builders still delinquent and the management company will consult with the Board of Directors for instructions which may include preparation of a Notice of Default and Election to Sell or a summons and Complaint.

E. Depending on home equity values the Association may file suit to foreclose the lien or sue on a contract theory for all sums due.

F. In the event a judgement is rendered and the Builder still refuses to pay, the attorney may, upon request, be granted the authority from the Board to immediately commence execution upon the judgement, which includes garnishment of bank accounts and wages, seizure and sale by the sheriff or constable of non-exempt real and personal property, and debtor's examination.

Adopted this 13th day of August, 2013

Peggy Chandler, President

Robert Carroll, Secretary

SUMMERLIN WEST COMMUNITY ASSOCIATION
NON-RESIDENTIAL BILLING AND COLLECTION PROCEDURES

Pursuant to Article VIII, Sections 8.7 and 8.9 of the Declaration of Covenants, Conditions and Restrictions for the Summerlin West Community Association (CC & Rs) the Board of Directors have authority to adopt procedures for the billing and collecting of assessments and charges (hereinafter referred to as " Assessments").

In accordance with NRS 116.3116, Summerlin West Community Association (the Association) has a lien on a unit for any construction penalty that is imposed against a unit's Owner pursuant to NRS 116.310305, any assessment levied against that unit or any fines imposed against the unit's Owner from the time the construction penalty, assessment or fine becomes due. If the assessment is paid in installments, the full amount of the assessment is a lien from the time the first installment thereof becomes due.

The Board of Directors hereby formally adopts the following billing and collection procedures for Non-Residential Properties subject to assessment by the Summerlin West Community Association to be implemented forthwith.

1. Assessments shall be due in twelve installments each year on the first day of each month.

2. No later than ten (10) days prior to the due date, on or before the twentieth (20th) day of each month respectively, initial billing statements will be mailed by regular mail to the property Owners at their current addresses.

3. Payment is due on the 1st day of the billing month. A late charge of 5% of the outstanding balance, but in no case less than $25.00, shall be assessed if payment is not received within thirty (30) days after the due date.

4. If an Owner is delinquent ninety (90) days of more, a formal Intent to Lien notice, pursuant to Section 8.9, will be mailed by regular and certified mail. Prior to the mailing of the Intent to Lien or the Notice of Delinquent Assessment, the Association will mail to the delinquent property Owner or his/her successor in interest:
   (a) A schedule of the fees that may be charged if the property Owner fails to pay the past due obligation;
   (b) A proposed repayment plan; and
   (c) A notice of the right to contest the past due obligation at a hearing before the executive board and the procedures for requesting such a hearing.

   The Intent to Lien notice will itemize all sums due for all platted lots owned by the Owner, and inform the Owner that if all delinquent sums are not fully paid within thirty-five (35) days from the date of the letter, one or more of the following steps will be taken:

   A. Acceleration of the balance of fiscal year assessments.

   B. A Notice of Delinquent Assessment will be recorded on the property.

   C. Legal action may be commenced to foreclose the lien.

   D. Legal action may be commenced to collect the assessment, late charges, collection costs, court costs and attorney's fees, and all other sums due.

E. The debt may be reported to a credit reporting agency.

5. If the payment is not received on the thirty-fifth (35th) day, the preparation of the Notice of Delinquent Assessment will begin. In addition, the current ownership of the property will be verified and a copy of the deed will be secured.

6. Upon assignment of a property file to a professional lien and foreclosure service or an attorney, (hereafter referred to as "Agent") the collection procedure is as follows:

A. The agent will prepare and record a Notice of Delinquent Assessment demanding payment within thirty (30) days. The notice will include the agent's fees for such.

B. The Notice of Delinquent Assessment will be sent by regular and certified mail. It will demand that payment be made to Summerlin West Community Association and delivered to the agent's office.

C. If payment is not received within thirty (30) days or if the Owner does not make satisfactory arrangements to pay the sum due, the agent may on or as soon after the thirty-first (31st) day as possible, and without further notice, report the debt to a credit agency.

D. Agent will then inform the management company as to those Owners still delinquent and the management company will consult with the Board of Directors for instructions which may include preparation of a Notice of Default and Election to Sell or a summons and Complaint.

E. The Association may file suit to foreclose the lien or sue on a contract theory for all sums due.

F. In the event a judgement is rendered and the Owner still refuses to pay, the attorney may, upon request, be granted the authority from the Board to immediately commence execution upon the judgement, which includes garnishment of bank accounts and wages, seizure and sale by the sheriff or constable of non-exempt real and personal property, and debtor's examination.

Adopted this 13th day of August, 2013

Peggy Chandler, President

Robert Carroll, Secretary

SUMMERLIN WEST COMPLIANCE PROCEDURES

There are predominately two documents that define the Community Wide Standards for Summerlin West. These are the Supplemental Declaration of Covenants, Conditions, Restrictions and Reservation of Easement which contains the use restrictions and the Design Guidelines and Standards that provide guidance to homeowners wishing to make improvements and modifications to the exterior of their homes or landscaping. These documents are provided to each purchaser at the time they close escrow on their homes. In addition, these documents can be found at www.summerlink.com . Click on the *Homeowners* icon on the upper left top and then the West icon.

In order to provide the due process *required under Nevada law*, if a violation of the Summerlin West Governing Documents is suspected, the steps available to the association to achieve resolution are:

1. Friendly neighbor-to-neighbor contact which often will resolve the matter quickly and easily. If such contact is unproductive, deemed to be unwise, or inappropriate, then:

2. Violations must be reported ***in writing***. A "Complaint Form" can be obtained at the Summerlin Community Association office at 10801 W. Charleston, 3rd Floor and on the www.summerlink.com website. Click on *Homeowners,* go the West and then to *Complaint Form.* The *Homeowners* link is located on the upper left top of the home page.

3. If the violation is verified, a Courtesy Letter will be sent to the violator.

4. If the violation is repeated or uncorrected within ten (10) days of receipt of the Courtesy Letter, a First Warning Letter is sent to the violator.

5. If the violation is repeated or uncorrected 10 days after the mailing of the First Warning, the matter is referred to those Summerlin West residents who serve on the Compliance Advisory Committee.

6. The Compliance Advisory Committee will schedule a hearing and invite the violator to attend and present his/her response.

7. If the Compliance Advisory Committee is satisfied with the response, it may decide to drop the matter entirely.

8. If the Compliance Advisory Committee is not satisfied with the response, it may assess a monetary penalty as allowed pursuant to NRS 116.31031.

9. If the violator is assessed a monetary penalty, the decision may be appealed to the Board of Directors, whose decision is final.

SUMMERLIN WEST COMMUNITY ASSOCIATION

SPECIFIC ASSESSMENT PENALTY POLICIES AND PROCEDURES

The Board of Directors of the Summerlin West Community Association has been granted responsibility to conduct, manage and control the affairs and business of the Association. In accordance with Article III, Use and Conduct, Section 3.2 Rules Making Authority and Article VII, Section 7.4 of the Declaration of Covenants, Conditions and Restrictions for the Summerlin West Community Association, the Board is empowered to adopt, amend, and repeal such Rules and Regulations as it deems reasonable and appropriate in the enforcement of the governing documents of the Summerlin West Community Association.

Furthermore, in accordance with Article VIII, Section 8.4, the Rules and Regulations may also include the establishment of a Specific Assessment related to the enforcement and/or violation thereof.

Accordingly, to provide for continuing proper operation of the Association property, the Association, through its Board of Directors, and in conformity with Articles III, VII and VIII of the CC&R's and Article III, Section 3.17 of the Bylaws, has adopted the following Specific Assessment Penalty Policies and Procedures for the CC & Rs now in force or as may be amended hereafter, and of the Rules and Regulations as may be hereinafter adopted, amended or repealed.

POLICY

Violations of the CC & Rs and/or Rules are subject to the following Specific assessment penalties:

[a] First Notice of Violation - written warning without Monetary Penalty

[b] Second Notice of Violation - $100.00 Specific Assessment

[c] (1) After sending a second notice of the violation, the offending member will be entitled to appear before the Association's Board of Directors. A specific assessment, which must be commensurate with the severity of the violation, may be imposed, not to exceed $100.00 for each violation or a total of $500.00, whichever is less.

(2) If a fine is imposed pursuant to subsection c.1, and the violation is not cured within 14 days immediately following the hearing, or a longer period, as determined by the Board of Directors, the violation shall be deemed a continuing violation. Thereafter, for each seven (7) day period that passes in which the violation has not been corrected as required by the Board, the Board may impose an additional Specific Assessment, which must be commensurate with the severity of the violation. Any specific assessment imposed as a result of a continuing violation may be imposed without notice and an opportunity to be heard.

Additionally, the Board shall have the power to levy a Specific Assessment against the Member for violations which, the Board determines threaten the health and welfare of the community. The Specific Assessment amount shall be commensurate with the severity of the violation but shall not be restricted by a maximum dollar amount.

[d] If the violation has resulted in damage to the Common Area, the Board may order that the damages be repaired at the expense of the offending Member.

[e] A violation is deemed to be a repeated or continued violation for purposes of the 14 day period and for each 7 day period thereafter when a sufficient amount of time has elapsed from the preceding violation to allow correction of the initial violation.

PROCEDURES

Prior to the imposition of any penalty for violation of the CC & Rs or Rules, the Association shall afford the offending Member with notice of the violation and an opportunity to be heard in person, by submission of a written statement or through a representative at an Executive Session of a meeting of the Board of Directors called for such purpose.

(A) NOTICE:

1. Upon receipt of a written complaint from an Association Member or a report to the Association alleging a violation of the CC & Rs or Rules by a Member, or Member's dependants or guests and if it appears to the Association that the violation does exist, then the Association will issue a ARequest for Compliance≅, which will serve as first notice of the violation.

2. The Association Member is required to respond in writing to the Request for Compliance by returning the Correction Response, which is sent, with the Request for Compliance. If the offending Member fails to respond to the Request for Compliance, a ANotice of Hearing may be sent to the offending Member at which time a hearing shall be set. The hearing date shall be at least ten (10) days from the date the Notice of Hearing is mailed and/or delivered to the offending Member.

(B) HEARINGS:

1. If the Member fails to take action and fails to cease and desist from further violations before receiving the Notice of Hearing, the Board of Directors of the Association may order a Hearing if the Association desires to impose any Specific Assessment. The Board shall have the right to limit the time of the Hearing and limit the time in which any evidence may be presented. The Hearing shall be held in a Board Executive Session.

2. Proof that the accused Member received the Notice of Hearing and that the Association has complied with the CC & Rs and Bylaws regarding distribution of relevant restrictions of the Association shall be entered into the minutes of the Hearing. Proof that the accused member has received Notice of Hearing shall be adequate if a copy of the Notice of Hearing, together with a statement of the date and manner of delivery, is entered into the minutes of the meeting by the officer, Directors or agent who delivered the Notice of Hearing. If the accused Member is present at the Hearing, notice shall be deemed adequate.

3. At the Hearing, the accused Member may present any evidence or make any statement relating to the violation, either in person or in writing to the Board of Directors.

4. Upon hearing all of the evidence, the Board may, by a majority vote:

   [a] Find that no violation exists and extinguish the specific assessment, or
   [b] Find that the Member is in violation and maintain the imposition of the $100.00 Specific Assessment, reduce the amount of the $100.00 Specific

Assessment and/or impose additional Specific Assessments as set forth herein.

[c] Require the offending Member to sign an agreement to correct the violation within a specific time frame and to post a cash bond, not to exceed $1,000.00, guaranteeing performance.

[d] Suspend the Member's rights and privileges for the use of the Common Area.

[e] If the violation resulted in damage to the Common Area, order the damage be repaired at the expense of the violating Member.

[f] Take any other action allowed by the CC & Rs and Nevada Revised Statues

5. If, after the Hearing, the offending Member refuses to abide by the decision imposed by the Board, the Board may, without further notice, elect to compel compliance with such decision as provided in the CC & Rs.

6. If any Member accused of a violation of the CC & Rs or Rules, after notice as provided herein, shall fail to appear for a Hearing, the Board or its designee shall proceed in their absence, and make a determination based on the facts presented.

7. Any action taken by the Board of Directors under this section shall not deprive either party of any remedies otherwise available by law.

8. If the Hearing is conducted before a committee of the Board of Directors, the violating Member shall have the right to appeal the decision of the committee to the full Board of Directors.

Adopted this 9th day of November, 2001

Peggy Chandler, President
Jeffery Geen, Secretary

SUMMERLIN WEST COMMUNITY ASSOCIATION

RESOLUTION

OPERATING FUND INVESTMENTS

WHEREAS, the Amended and Restated Declaration of Covenants, Conditions, Restrictions and Reservation of Easements for Summerlin West Community Association, Article 6, Section 6.2 charges the Board of Directors with the power and duty to establish and maintain an operating fund for current expenses of the organization, and further

WHEREAS, same said Article 6, Section 6.2 allows the Board of Directors to co-mingle all maintenance funds (operating and reserve accounts) of the Association to assist in qualifying for higher returns, and

WHEREAS, the Amended and Restated Bylaws for the Summerlin West Community Association, Article IV, Sections 4.2 and 4.3(b) provides the Board of Directors with the power and duty to manage the business of the association and the power and duty to adopt and promulgate reasonable rules and restrictions thereof,

WHEREAS, there is a desire to establish a policy concerning the prudent investment of operating and contingency funds,

NOW, THEREFORE BE IT RESOLVED that the Board of Directors of the Summerlin West Community Association has established the following policy:

Given the active nature of the association's deposit and expense accounts coupled with the association's large balance of funds it has been determined that the association is best served by a deposit/investment cycle of laddering of the excess operating funds that have accumulated over time. This will assure sufficient availability of funds and realization of the highest possible rate of return (yield) while prudently protecting principal.

The association will accomplish this by causing to be purchased U.S Treasury Bills, Certificates of Deposit or similar instruments in varied amounts and lengths of term for long term excess operating funds. Short term excess operating funds will be held in a regular banking institution in an account that will ensure liquidity and accessibility at a reasonable rate of return. The association shall comply with all provisions of NRS 116 and NAC 116. The association's independent accounting firm will assist community management personnel in the review of historical financial data to assure proper development of a purchase and reinvestment schedule.

To maximize security and to maximize the rate of return, the Investments will be purchased directly from the issuer in the name of Summerlin West Community Association. The Board will resolve to use their best efforts to assign the duty of original purchasing and future maintenance of the investment schedule to contracted management with the assistance of the association's accounting firm.

Adopted this 10th day of November, 2009.

Peggy Chandler, President
Robert Carroll, Secretary

SUMMERLIN WEST COMMUNITY ASSOCIATION

RESOLUTION
RESERVE FUND INVESTMENTS

WHEREAS, Nevada Revised Statutes 116.3115 requires that common-interest communities establish a reserve fund for the replacement and repair of major components of the common areas, and

WHEREAS, the Amended and Restated Declaration of Covenants, Conditions, Restrictions and Reservation of Easements for Summerlin West Community Association, Article 6, Section 6.2 charges the Board of Directors with the power and duty to establish and maintain a reserve fund for replacement and repair of the capital improvements, and further

WHEREAS, same said Article 6, Section 6.2 allows the Board of Directors to co-mingle all maintenance funds (operating and reserve accounts) of the Association to assist in qualifying for higher returns, and

WHEREAS, the Amended and Restated Bylaws for the Summerlin West Community Association, Article IV, Sections 4.2 and 4.3(b) provides the Board of Directors with the power and duty to manage the business of the association and the power and duty to adopt and promulgate reasonable rules and restrictions thereof,

WHEREAS, there is a desire to establish a policy concerning the prudent investment of funds set aside for the repairs and replacement of components of the common areas,

NOW, THEREFORE BE IT RESOLVED that the Board of Directors of the Summerlin West Community Association has established the following policy:

In that the Board's responsibility is first and foremost to the principal funds, all association accounts and investments will be deposited, structured, managed and/or purchased to assure that funds be federally insured. Given the active nature of the association's deposit and expense accounts coupled with the association's large balance of funds it has been determined that the association is best served by a deposit/investment cycle of laddering of funds. This will assure sufficient availability of funds and realization of the highest possible rate of return (yield) while prudently protecting principal.

The association will accomplish this by causing to be purchased U.S Treasury Bills, Certificates of Deposit or similar instruments in varied amounts and lengths of term. The association shall comply with all provisions of NRS 116 and NAC 116. The association's independent accounting firm will assist community management personnel in the review of historical financial data and the most current reserve analysis to assure proper development of a purchase and reinvestment schedule.

To maximize security and to maximize the rate of return, the Investments will be purchased directly from the issuer in the name of Summerlin West Community Association. The Board will resolve to use their best efforts to assign the duty of original purchasing and future maintenance of the investment schedule to contracted management with the assistance of the association's accounting firm.

Adopted this 10th day of November, 2009.

Peggy Chandler, President
Robert Carroll, Secretary

SUMMERLIN WEST COMMUNITY ASSOCIATION

RESOLUTION

AUTHORITY FOR ELECTRONIC TRANSFER OF FUNDS

WHEREAS, Nevada Revised Statute 353.1467 requires that all funds payable to the State of Nevada in excess of Ten thousand and no/100 dollars ($10,000.00) must be made by electronic transfer; and

WHEREAS, Nevada Revised Statute 116.31153, Subsection 3, allows a common-interest community to electronically transfer funds to a state agency; and

WHEREAS, Article 6 of Declaration of Covenants, Conditions and Restrictions and Reservation of Easements of the Summerlin West Community Association, Section 6.1 Functions of the Association, provides that the Association shall perform its functions in accordance with Nevada law; and

WHEREAS, Article III, Board of Directors, of the Bylaws of the Summerlin West Community Association, Section C, 3.16 Powers and Duties, provide the Board of Directors with all of the powers and duties necessary for the administration of the Association's affairs subject to the Governing Documents and Nevada law;

NOW, THEREFORE BE IT RESOLVED that the Board of Directors of the Summerlin West Community Association does hereby expressly authorize electronic fund transfers in accordance with all applicable Nevada Revised Statutes.

Adopted this 7th day of February, 2012

Peggy Chandler, President
Robert Carroll, Secretary

SUMMERLIN WEST COMMUNITY ASSOCIATION

RESOLUTION

SUBDIVISION COMMON-AREA ENHANCEMENT

WHEREAS, the Declaration of Covenants, Conditions and Restrictions and Reservation of Easements, Article 3, Use and Conduct, Section 3.2, Rules Making Authority; and the Bylaws, Article III, Board of Directors:...Powers,... Section 3.16 and 3.17(F) of the Summerlin West Community Association provide the Board of Directors with the power to adopt, amend, and repeal such Rules and Regulations as it deems reasonable and appropriate, and

WHEREAS, there is a need to establish a policy for enhancements to the subdivision common-areas,

NOW, THEREFORE BE IT RESOLVED that the Board of Directors of the Summerlin West Community Association ("Association") does hereby adopt and establish the following policy:

- the Association adopts approved subdivision common-areas for maintenance as installed by the participating builder.

- the Association replaces plant materials and maintains improvements on an as needed basis as installed by the participating builder. The Association reserves the right to make plant substitutions in the event the original plant material has not performed well in a particular location.

- subdivision common-areas may be modified and/or enhanced at the expense of the residents of the subdivision under the following circumstances:

  - a committee of residents has been formed to facilitate the modifications and/or enhancements, and
  - it can be demonstrated that a majority of the subdivision residents are in favor of the modifications and/or enhancements, and
  - a plan for the modifications and/or enhancements has been approved by the Design Review Committee of the Association, and
  - the funds to cover the cost of the modifications and/or enhancements have been raised from among the subdivision residents and/or provided by the participating builder.

- the Association will consider participation in the cost of the modifications and/or enhancements only under the following circumstances:

  - it can be demonstrated that the modifications will provide a savings in maintenance and/or water costs to the Association, and
  - the amount of the Association contribution cannot exceed the total of two (2) years of savings in maintenance, and
  - the residents of the subdivision have contributed an equal amount, excluding any funds contributed by a participating builder.

Adopted this 10th day of February, 2009

Peggy Chandler, President

Robert Carroll, Secretary

Mailed March 1, 2009

SUMMERLIN WEST COMMUNITY ASSOCIATION

RESOLUTION

GARAGE CONVERSION TO LIVING SPACE

WHEREAS, The Howard Hughes Company, LLC is the Declarant (Declarant) for the Summerlin West Community Association (Association), and

WHEREAS, the Declaration of Covenants, Conditions, and Restrictions (CC & Rs) for the Summerlin West Community Association Article IV, Section 4.3.1 provides that the Declarant has sole and full authority to amend the Design Guidelines as long as Declarant owns any portion of the Project, and

WHEREAS, the Supplemental Declaration of Covenants, Conditions, Restrictions and Reservation for Easements for the Summerlin West Community Association, Article I, Section 1.14(a) provides that each lot shall be improved with a single family residential unit plus a garage, and

WHEREAS, the Supplemental Declaration of Covenants, Conditions, Restrictions and Reservation for Easements for the Summerlin West Community Association, Article I, Section 1.16 provides vehicles owned by residents shall be placed in the garage of such residential unit to the extent of the space available therein, and

WHEREAS, Declarant desires to establish guidelines regarding whether an owner of a residential unit may convert garage space to living space,

NOW, THEREFORE BE IT RESOLVED that the Declarant has established the following guidelines:

Conversion to living space of a garage designed for the parking of two or fewer vehicles is prohibited. Conversion to living space of the third bay of a garage designed for three or more vehicles shall be considered on a case by case basis in the sole discretion of the Design Review Committee and any such conversion shall require the consent of the Declarant, which consent shall be in Declarant's sole discretion, so long as Declarant owns any real property which has been annexed into the CC & Rs or is part of the annexable property under the CC & Rs.

By: The Howard Hughes Company, LLC

Kevin Orrock, Vice President

Date 2/5/14

SUMMERLIN WEST COMMUNITY ASSOCIATION

RESOLUTION

GARAGE SALE SIGNAGE

WHEREAS, the Bylaws for the Summerlin West Community Association, Article III, Sections 3.16 and 3.17 (F), provide the Board of Directors power and duty to adopt and promulgate reasonable rules and restrictions for the Association, and

WHEREAS, the Supplemental Declaration of Covenants, Conditions, Restrictions and Reservation of Easements for Summerlin West Community Association, Article 1, Section 1.3 provides that no sign shall be displayed that has not been approved by the Design Review Committee, and

WHEREAS, there is a need to establish guidelines concerning signage for garage sales,

NOW, THEREFORE BE IT RESOLVED that the Board of Directors of the Summerlin West Community Association has established the following policy:

- **Only standardized signage developed by the Summerlin West Community Association will be permitted.**
- **Standardized signage will be available for purchase, at cost, from The Summerlin Council.**
- **Signage may be erected no more than 12 hours preceding sale time and must be removed immediately at the end of the sale day.**
- **All signs other than the standardized signage or signs erected on non-sale days or outside the time parameters are a violation and will be removed by the Summerlin West Community Association and the offending members may be subject to fines.**

ADOPTED THIS 9th DAY OF NOVEMBER, 2001

Peggy Chandler, President
Jeffery Geen, Secretary

SUMMERLIN WEST COMMUNITY ASSOCIATION

RESOLUTION

HOLIDAY DECORATIONS

WHEREAS, the Bylaws for the Summerlin West Community Association, Article III, Section C, 3.16 and 3.17 (f), provide the Board of Directors power and duty to adopt and promulgate reasonable rules and restrictions for the Association, and

WHEREAS, there is a need to establish guidelines concerning the display of holiday decorations,

NOW, THEREFORE BE IT RESOLVED that the Board of Directors of the Summerlin West Community Association has established the following policy:

- **Holiday decorations may be displayed for 30 days prior to the holiday.**
- **Holiday decorations must be removed within 30 days following the holiday.**

ADOPTED THIS 9TH DAY OF NOVEMBER, 2001

Peggy Chandler, President
Jeffery Geen, Secretary

SUMMERLIN WEST COMMUNITY ASSOCIATION

RESOLUTION

REMOVAL OF PLANT MATERIALS FROM COMMON AREAS

WHEREAS, the Bylaws for the Summerlin West Community Association, Article III, Sections 3.16 and 3.17 (F), provide the Board of Directors power and duty to adopt and promulgate reasonable rules and restrictions for the Association, and

WHEREAS, Article VII, Section 7.2, of the Declaration of Covenants, Conditions, Restrictions and Reservation of Easements for Summerlin West Community Association provides the Board of Directors with the power and duty to maintain the Common area in accordance with the Community-Wide Standard, and

WHEREAS, there is a need to host a variety of trees and plant life in the community parks, streetscapes and various common areas, and

WHEREAS, hundreds of acres of park land, miles of streetscape and a multitude of neighboring properties must co-exist and contribute to the overall landscape enhancement of the community, and

WHEREAS, there is a the need to establish a written policy regarding the removal of trees and plant materials from common areas at the request of individual lot owners,

NOW, THEREFORE BE IT RESOLVED that the Board of Directors of the Summerlin West Community Association has established the following policy:

> **Trees and plant life will not be removed from the parks, streetscapes and other common areas because of concerns over foliage by individual lot owners unless it can be established that there is an immediate threat to the health, safety and welfare of the lot owner.**

ADOPTED THIS 9th DAY OF NOVEMBER, 2001

Peggy Chandler, President
Jeffery Geen, Secretary

SUMMERLIN WEST COMMUNITY ASSOCIATION

RESOLUTION

COMMERCIAL VEHICLES

WHEREAS, the Declaration of Covenants, Conditions, and Restrictions for the Summerlin West Community Association, Article III, Section 3.2 provides the Board of Directors power to adopt and promulgate reasonable rules and restrictions for the Association, and

WHEREAS, there is a need to establish guidelines concerning the definition of a truck, van or commercial vehicles, as described in the Supplemental Declaration of Covenants, Conditions, Restrictions and Reservation for Easements for the Summerlin West Villages, Article I, Section 1.16,

NOW, THEREFORE BE IT RESOLVED that the Board of Directors of the Summerlin West Community Association has established the following guidelines:

> **No commercial vehicle may be parked within the Development with the exception of a small commercial type vehicle, including trucks and vans, which may be parked overnight within the development provided the vehicle is parked on the driveway and is not a dump truck, cement mixer, oil or gas delivery truck, flatbed truck, does not have more than two axles, does not contain supplies or equipment on or in said vehicle that are visible from a public or private street within the development or any portion of a lot within the development, and said vehicle is well maintained in a neat, clean and un - obtrusive condition. This includes camper trucks or similar vehicles up to and including 3/4 ton, that are used for everyday type transportation. The acceptability of all such vehicles, however, is subject to the approval of the Board of Directors.**

Adopted this 9th day of November, 2001.

Peggy Chandler, President
Jeffery Geen, Secretary